

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on July 16, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 16, 2024, a complaint was received by this Agency filed by A.A.A. (hereinafter, the complainant) against ASESORÍA Y CONSULTORÍA PARA EMPRESAS YOU, S.L. (hereinafter, the respondent) for not having duly attended to the right of access to their personal data.

"(...) On several occasions, I have requested YouAsesoria to provide me access to the invoices and other documentation that I have uploaded to their system over the past years, information that is clearly my property. However, the company has responded that they do not have information that belongs to me and that the accounting performed is their work and, therefore, their property, thus denying me access to my own data.

Additionally, I have been informed that they will only provide me with this information if I catch up on some fees that I supposedly owe, fees that correspond to a period in which my tax obligations have not been submitted. This payment demand to release my personal data is unacceptable and constitutes an abusive and coercive practice, akin to digital kidnapping. (...)"

The complainant provides the following documents:

- Email dated March 8, 2024, from the respondent to the complainant, stating "(...) In response to your request for cancellation of the advisory services sent on March 7, 2024, we cannot comply with this request.

Please be reminded that the non-submission of your tax obligations is due to your state of delinquency with the advisory service. (...)"

- Email dated March 8, 2024, from the complainant to the respondent proposing "(...) to resolve this, please tell me a fixed amount to bring the accounts up to date (...)"

- Email dated March 11, 2024, from the respondent to the complainant informing them of the amount they should pay to catch up on their payments.

- Email dated July 1, 2024, from the complainant to the respondent informing them that they have had financial difficulties and would like to know how they can resume the advisory services.

- Email dated July 1, 2024, from the respondent responding to the complainant providing "(...) a budget to bring you up to date with the advisory service." "(...) Once you send us the data and proof of payment, we will register you in the system and assign you an advisor."

- Email dated July 11, 2024, from the complainant to the respondent with the subject "Request for access to personal data and billing," and the text: "(...) to request access to my personal data and to the invoices that are registered in the system, especially those corresponding to the fourth quarter of 2023.

Additionally, I request the data you have from the company Elite Upgrade Consulting SL. I make this request in my capacity as administrator of said company.

Attached to this email is an image of my NIE (Foreigner Identification Number) (...)"

- Email dated July 11, 2024, from the respondent to the complainant:

"...to regain access, you need to catch up on the overdue fees that are owed."

- Email dated July 11, 2024, from the complainant to the respondent with the subject "Re: Access to personal data and billing," and the text:

"I would like to clarify that the requested information is my property and not yours. Furthermore, you are charging me for a quarter in which you failed to comply with the proper submission of my tax obligations.

If you do not provide me with my personal data and the requested information, I will proceed to file a complaint with the Spanish Agency for Data Protection..."

- Email dated July 12, 2024, from the respondent to the complainant:

“(..) We do not have any information that belongs to you.

The information about the company and the documentation should be with you. You can consult with the Tax Agency all the tax forms with the digital certificate of the company or of the self-employed individual.

Logically, the accounting is work done by us and is our property, which we will deliver without problems if you catch up on the fees. As you can understand, we cannot send work for which we have...”

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returned the fees month after month, incurring return costs as well that have not been charged to him. You also mention that we have incorrectly filed your tax obligations, which makes no sense. We have the returned receipts of the fees for your self-employment and your company. Of course, no work was going to be done for which you are not paying. You were repeatedly notified via email because you did not answer our calls.

We are implementers of the Data Protection Law and know its scope; in this case, the claim you want to make has no basis.

At all times, we have offered to update your company and your self-employment. Even an amount below what you owed us was provided. Even so, you have made no payment. (...)

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Email dated July 16, 2024, from the claimant to the respondent:

“Unfortunately, your email reflects a series of misunderstandings and incorrect statements. Allow me to clarify the points below:

1. Property Data: The invoices charged to your system contain information that is my property, as I am the owner of that data. The Data Protection Law protects my right to access such information. Denying access to my own data goes against this legislation.

2. Undue Charge: I am being charged for a period during which my tax obligations have not been filed. This is not only incorrect but also borders on unacceptable behavior, similar to a kidnapping of information. I will not pay for a period where you yourselves acknowledge that no work has been done.

3. Access to My Data: The data in your system regarding the invoices I have uploaded over the past years belongs to me and not to you. I am the owner of that information and have the right to access it unconditionally.

4. Claim Before the AEPD: I will proceed to initiate a claim before the Spanish Agency for Data Protection (AEPD) due to your refusal to grant me the right to access my data. (...)”

SECOND: After examining the claim submitted, on 02/08/2024, the Director of the Agency decided to reject the claim.

“(..)

The right of access provided for in data protection regulations is a personal right that protects the access to personal data of the holder, although it does not generally imply the obtaining of copies of documents that may contain personal data (contracts, invoices, minutes...), certifications, or other information associated with a business, labor, associative, or administrative relationship.

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According to the information provided alongside the complaint, the request made to the entity being claimed pertains to documentation related to the accounting of an entity for which the claiming party is responsible. Therefore, in the response sent by the claimed party, it is not possible to identify an obstruction of the claiming party's right to access data, as it refers to accounting information linked to the business activity of the company for which they are responsible.

Furthermore, it should be added that this Agency is not competent to resolve civil matters, such as

those related to the civil or commercial validity of a contract, the accuracy of the amount of a debt, irregularities in invoicing, the proper provision of contracted services, the imposition of penalties, or the interpretation of contractual clauses, as its competence is limited to determining whether the legal and regulatory requirements established for data processing have been met, without conducting inquiries typical of the civil sphere. The determination of the legitimacy of a debt based on an interpretation of the contract signed between the parties and its correct amount must be pursued before the competent administrative or judicial bodies, as it exceeds the jurisdiction of this Agency. (...)

THIRD: Dissatisfied with the resolution of inadmissibility notified to the appealing party on August 7, 2024, the claiming party filed a Recurso de Reposición (Appeal for Reinstatement) against said resolution on August 8, 2024, arguing that the claimed party not only handled data related to invoices and their status as a representative of a commercial entity but also personal data of the appealing party, to which they have not been granted access, affecting their request for such data. They submitted alongside their complaint a revocation of power of attorney in favor of the claimed party, presented to the Tax Agency.

Once the corresponding Recurso de Reposición procedure was instructed, on October 30, 2024, the Director of this Agency deemed it appropriate because "(...) In this case, alongside the appeal for reinstatement, new relevant documentation has been provided regarding the issues raised, proving that their access request would affect their personal data, which must be analyzed by the General Subdirectorato de Data Inspection." for the complaint to follow the procedure established in Article 65 of the LOPDGDD.

FOURTH: As a consequence of the acceptance of the aforementioned Recurso de Reposición, in accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the claimed party for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The claimed party responded on November 27, 2024, stating the following:

"(...) Mr. A.A.A. alleges in his request to this Agency a violation of the right recognized in Article 15 of the GDPR. In this regard, we must say that, firstly, the advisory service has not denied the exercise of any of the rights recognized in data protection regulations. And, secondly, that the Advisory and Consulting for Business YOU S.L. does not perform document custody functions. Proof of this is the contract with the client Mr. A.A.A., attached as document no. 2. Among the

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The functions included in the provision of services listed in the first clause of the contract are: accounting advice, tax advice, and labor advice; the custody of original documents is not included. Furthermore, it is stated at the beginning of the contract as identification of the same: (...)

The development of the contracted advisory services is carried out through the consultation of copies of invoices that clients upload to an online platform where a profile for the client has been previously generated. Given that this is an advisory service that provides online advisory services throughout Spain, the delivery of original documents by our clients is unfeasible. Therefore, we always operate with scanned copies uploaded by clients to an online platform that both the client can access to upload copies of invoices, consult their accounting, check their numbers, as well as their advisor to proceed with the necessary consultations for the submission of the relevant tax forms. Access to the data is consented by the interested party and, in any case, limited to the purpose of providing the contracted advisory services.

The client grants the advisory service access to their profile on this platform so that they can consult the necessary data to carry out their tax advisory work and submit the relevant forms to comply with the tax obligations of the self-employed individual or company. These documents are consulted online, without being downloaded. Once the service with each client is completed, the client's profile on the platform is disabled to avoid generating extra costs for the advisory service. In the event of resuming the service, upon payment of the relevant fees, it is reactivated.

That said, and explained the functioning of the advisory service, it will be understood how there is no violation of the rights recognized in data protection legislation. The data processed, as we have been saying, is done with the consent of the holder and for the purpose of providing the contracted services. Once the purpose for which they were collected has been fulfilled, and not being any of the exceptions that impose the retention of data for prolonged periods (art. 5.1.e) GDPR), the data is not retained since the self-employed individual or company, with their own digital certificate, can download the tax forms submitted to the Administrations directly, in addition to which, during the provision of the services, they are provided with and have access to each and every one of the tax forms and any documentation submitted. In this way, compliance with the data retention limitations recognized in current legislation is ensured.

Second. The interested party requested access to "personal and tax data that I have uploaded to your system" (the email sent by Mr. A.A.A. to the advisory service on July 16 is quoted verbatim). Document No. 3 is attached, which contains the email thread with the client.

With this expression, Mr. A.A.A. accepted that the documents whose access he demanded had not been delivered to You for custody, but rather that they were uploaded to the online platform or system. We reiterate, the Advisory and Consulting for Companies You S.L. does not retain original documents provided by clients, nor does it keep files with the documents, not even copies, of the clients. The Advisory accesses the copies of documents uploaded by clients to the platform (often in photo format and not even scanned), takes into account final values, percentages, and, in

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Attention to the same, performs its tax and accounting work and submits the applicable tax models. Furthermore, it advises its clients, entrepreneurs, and companies and informs them of the legal obligation that, as entrepreneurs, falls upon them regarding the preservation of documents related to the fulfillment of their tax obligations.

Precisely, this was the reason why, from the Advisory, a response was sent to your email indicating that those documents or data to which you referred were not preserved. It was indicated that the various tax models submitted during the provision of the service could be downloaded directly from the websites of the different Administrations with your digital certificate as a self-employed individual or that of the company. It is true that it was indicated that if you proceeded to pay for the advisory services, accounting work would be sent to you; this is due to the fact that the client had failed to pay for the services on several occasions.

At this point, we must clarify that the accounting work done by the advisory requires payment by the client of the annual fee. Due to the complexity of the operations of the companies, once the monthly fees are not paid, the activity of the accountants is halted, and thus, the accounting for that year remains incomplete. Therefore, when the monthly fees are not paid, the advisory halts the provision of such services (as stipulated in the contract that the client signs at the beginning of the professional relationship). Thus, if the client in their request of July 2024 wanted the accounting work to be developed or to be sent any specific accounting work, they must pay the price for it. However, this does not prevent the fact that the data or documents such as invoices, as we say, are not preserved by the advisory and, therefore, there is no need to grant access to the client; we have nothing to grant access to, which means that there was no violation of the right claimed by the interested party before this Agency. It is the client themselves who retains those documents and who can access the submitted models with their certificate.

All rights recognized in Articles 12 and following of the LOPDPGD 3/2018, of December 5, are fully recognized, both during the provision of the service and after its completion.

As we have been saying, it is the entrepreneur who has the obligation to preserve all documents necessary to comply with their tax obligations. Since this advisory has not contracted for document custody, since, we reiterate, this service is not offered by this advisory to any of its clients, this obligation of custody is not transferred to the advisory.

Therefore, the non-compliance with tax obligations that Mr. A.A.A. mentions in his emails cannot be attributed to the activity of the advisory. It can only arise precisely from the non-compliance with obligations inherent to every entrepreneur recognized in the applicable legislation, namely, Article 29.2 of the General Tax Law (58/2003) expressly provides for the obligation of taxpayers to "preserve the

invoices, documents, and justifications related to their tax obligations."

Attached documents:

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DOCUMENT 1: Public deed YOU ADVISORY - administrator.

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DOCUMENT 2: Service provision contract with A.A.A. signed on April 4, 2022. According to the stipulations agreed upon in this contract, the responding party commits to the organization and filing of current documentation for its delivery to the claiming party and to the provision of accounting books, as well as to delivering a "dossier" with all documentation in the event of early termination of the contract. In the section "Personal data protection," it is stated that the responding party informs the claiming party that "the personal data contained in this contract and those generated by the provision of the service, all of which relate to THE CLIENT, will be incorporated into a file, with the purpose of providing the service..." and that "THE CLIENT has the possibility to exercise the rights of access, rectification, cancellation, and opposition regarding their personal data, by sending a written request to the address of the ADVISORY indicated in the heading of this contract."

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DOCUMENT 3: Emails sent by A.A.A.:

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Email dated July 16, 2024, from the claiming party to the responding party indicating that "(...) I am writing to you to reiterate my request for access to the personal and tax data that I have uploaded to your system over the past years. This information is my property, and your refusal to provide it is preventing me from fulfilling my tax obligations. (...) I request once again that you provide me immediately with all the tax data and documents that I have uploaded to your system. If I do not receive a favorable response and access to my data within a reasonable time, I will be forced to initiate legal actions to resolve this serious issue."

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Email thread

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It starts with the email sent by the responding party to the claiming party, dated July 12, 2024, indicating that "(...) We do not have any information that belongs to you. The information about the company and the documentation must be in your possession. You can consult with the Tax Agency all the tax forms with the digital certificate of the company or the self-employed individual. Logically, the accounting is work done by us and is our property, which we deliver without problems if you are up to date with the payments. As you can understand, we cannot send work for which the payments have been returned month after month, incurring return costs that have not been charged to you. (...) "

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Response from the claiming party dated July 16, 2024: "I request access to my data once again. I attach a copy of the complaint filed with the AEPD."

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Email of the same date, from the responding party to the claiming party responding to their request, indicating that "(...) we are going to initiate a complaint for non-payment of our services and a claim for the return costs of the same payments, both yours and those of your business. (...) I remind you again

that the obligation to keep the documentation of your self-employed status and your company is yours. Legally, you must keep this information for 5 years. You can access the submitted taxes without problems with your digital certificates on the Tax Agency's website. Of course, the preparation of the accounting belongs exclusively to the advisory service. The work done is delivered to the client if the client pays their monthly fees. (...)”

□

Email of the same date, July 16, 2024, from the claiming party to the responding party indicating that “(...) I request access once again to my invoices and documents uploaded to your system, which are essential for my accounting. Furthermore, I expect a fair review of the services charged and not provided.”

FIFTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within ten working days, they may formulate the allegations they deem appropriate, with no response recorded in this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote the

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awareness of the controllers and processors regarding the obligations that fall upon them, as well as addressing the claims made by a data subject and investigating, as appropriate, the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

The initiation of this procedure occurs due to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or

processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection. Right of access

The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability of individuals regarding personal data are regulated in Articles 15 to 22 of the GDPR, as well as in Articles 13 to 18 of the LOPDGDD.

Regarding the right of access for data subjects to obtain the personal data “concerning them” from the controller of such data, Articles 12 and 15 of the GDPR, as well as Articles 12 and 13 of the LOPDGDD, are particularly applicable, all of which must be interpreted within the framework established in Recitals 59 to 64 of the GDPR.

Thus, the main content of the right and its scope or content is established in Article 15 of the GDPR, which provides as follows:

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“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged retention period for the personal data or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject submits the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In accordance with the provisions of these regulations, the controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request.

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request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

For its part, Article 13 of the LOPDGDD establishes certain guidelines for considering this right to be fulfilled by the data controller in specific cases, specifying the following:

“1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679. When the controller processes a large amount of data concerning the affected party and this party exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that permanently guarantees access to the entirety. For these purposes, the communication by the controller to the affected party regarding how they can access this system shall suffice to consider the request for the exercise of the right to be fulfilled.

However, the interested party may request from the controller the information referred to in the aspects provided in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is a legitimate reason for it.

4. When the affected party chooses a means other than the one offered that incurs disproportionate costs, the request will be considered excessive, and the affected party will bear the excess costs that their choice entails. In this case, the data controller will only be required to satisfy the right of access without undue delay.”

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about data transfers.

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personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others. In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the data subject to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month

period, unless there is a legitimate reason for it. Furthermore, the request will be considered excessive when the data subject chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the data subject.

IV

Conclusion

In the present case, it has been established that the claimant requested access to both their personal data and that of the company of which they are an administrator from the respondent.

The GDPR, in its Recital 14, establishes that "The protection granted by this Regulation must apply to natural persons, regardless of their nationality or place of residence, in relation to the processing of their personal data. This Regulation does not regulate the processing of personal data relating to legal persons and in particular to companies constituted as legal persons, including the name and form of the legal person and its contact details."

The same legal text provides in its Article 1 "Subject":

1. This Regulation establishes the rules relating to the protection of natural persons with regard to the processing of personal data and the rules relating to the free movement of such data.
2. This Regulation protects the fundamental rights and freedoms of natural persons and, in particular, their right to the protection of personal data.
3. The free movement of personal data within the Union may not be restricted or prohibited for reasons related to the protection of natural persons with regard to the processing of personal data.

And Article 4 "Definitions":

"For the purposes of this Regulation, the following shall be understood as:

1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)"

In the present case, and taking into account the provisions in the first paragraphs of this Rights Foundation IV, the claimant's request for access to the data relating to the company of which they are an administrator falls outside the present procedure as such access is not covered by personal data protection regulations.

The rights procedure is instructed as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in the present case, only the facts relating to the exercise of these rights will be analyzed and assessed, excluding the rest of the issues raised by the parties arising from the business relationship they maintained.

In this case, regarding the request for access to personal data made by the claimant, it must be considered, firstly, that they were a client of the respondent and that this business relationship necessarily involves the processing of personal data.

Furthermore, from the documentation provided by the parties, it has been established that the claimant requested from the respondent "(...) access to the personal and tax data that I have uploaded to your system over the past years. (...)", insisting on this request each time they received a response from the respondent denying said request, even warning them about the possibility of filing a complaint with this AEPD, as they ultimately did:

"(...) to request access to my personal data and to the invoices that are registered in the system, especially those corresponding to the fourth quarter of 2023."

"(...) I request once again that you immediately provide me with all the tax data and documents that I have uploaded to your system."

"(...) I again request access to my invoices and documents uploaded to your system, which are essential for my accounting. Additionally, I expect a fair review of the services charged and not provided."

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It is also noted that the respondent party replied to these requests from the claimant party by denying the request made:

“...to regain access, you must catch up on the overdue fees that were owed.”

“We do not have any information about your property. The information about the company and the documentation must be in your possession. You can check with the Tax Agency for all the tax forms with the digital certificate of the company or the self-employed individual. Logically, the accounting is work done by us and is our property, which we will deliver without problems if you catch up on the fees...”

In this regard, it is pertinent to apply the provisions set forth by the European Data Protection Board (hereinafter, EDPB), in Guidelines 1/2022, adopted on March 28, 2023, which approves the Application Guide for Article 15 of the GDPR, regarding the Right of Access of the Data Subject, which indicates that

“d) Does the request fall within the scope of Article 15?

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It should be noted that the GDPR does not introduce any formal requirement for individuals requesting access to data. To submit a request for access, it is sufficient for the requesting individuals to specify that they wish to know what personal data concerning them is processed by the data controller.

Therefore, the data controller cannot refuse to provide the data by referring to the lack of indication of the legal basis for the request, especially the lack of a specific reference to the right of access or the GDPR.

For example, to submit a request, it would be enough for the requester to indicate:

- that they wish to access the personal data concerning them;
- that they are exercising their right of access; or
- that they wish to know the information concerning them that is processed by the data controller.

It should be taken into account that requesters may not be familiar with the intricacies of the GDPR and that it is advisable not to be overly strict with individuals exercising their right of access, particularly when minors are exercising it. As previously indicated, in case of doubt, it is recommended that the data controller ask the requester to specify the subject of the request.

e) Do the data subjects wish to access all or part of the information processed about them?

51.

Furthermore, the data controller must assess whether the requests made by the requesting individual refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request “information about the data processed concerning them,” the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 and 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, with respect to the data they specify, to have access to the source or origin of the personal data or to the specified retention period. In such a case, the data controller may limit their response to the specific information requested.

3.1.2 Form of the request

52.

As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, in principle, there are no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller.

Likewise, the Judgment of the Court of Justice (Third Chamber) of May 7, 2009 [CJEU Rijkeboer 7.5.2009 — Case C-553/07] indicates that

“51 The aforementioned right of access is essential for the data subject to exercise the rights

contemplated in Article 12, letters b) and c), of the Directive, namely, where applicable, when the processing does not comply with its provisions, to obtain from the data controller the rectification, erasure, or blocking of the data [letter b)], or to notify third parties to whom the data has been communicated of any rectification, erasure, or blocking carried out, unless this proves impossible or involves a disproportionate effort [letter c)].

52 The right of access is also a necessary condition for the data subject to exercise the right to object to the processing of their personal data, as provided in Article 14 of the Directive, as it is for the right to seek compensation for damages suffered, as provided in Articles 22 and 23 thereof.”

On the other hand, regarding the right to obtain a copy, the Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023 states:

“1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation),

must be interpreted as meaning that

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The right to obtain from the data controller a copy of the personal data being processed implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of excerpts from documents, or even entire documents, or excerpts from databases that contain, among others, such data, if the provision of such a copy is essential to allow the data subject to effectively exercise the rights conferred by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679 must be interpreted to mean that the concept of "information" it encompasses refers exclusively to the personal data of which the data controller must provide a copy in accordance with the first sentence of that paragraph.

Therefore, according to the interpretation of the right of access made by the Court of Justice of the European Union, as well as what is established in the aforementioned Guidelines 1/2022, the claiming party has exercised the right of access regarding the personal data that concerns them, and the responding party must provide the claiming party with their right of access under the terms provided in the GDPR.

It is then appropriate to delve into the substance of the matter and analyze whether the grounds for dismissal put forward by the responding party were appropriate. This is done without considering the stipulations agreed upon by the parties in the contract that governed their business relationship regarding the documentation generated by the provision of tax, labor, and accounting advisory services, which are noted in the fourth antecedent, as it does not correspond to this AEPD to assess their compliance or non-compliance.

In this regard, it is pertinent to apply the provisions of the aforementioned Guidelines 1/2022, whose point 4.2 specifies the scope of the personal data encompassed by the right of access, making specific mention of the data that concerns the data subject, warning against the danger of making a "too restrictive" interpretation to automatically deny access.

These Guidelines establish the following:

“4.2 The personal data referred to by the right of access

102. According to Article 15, paragraph 1, of the GDPR, “[t]he data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, if that is the case, access to the personal data and to the following information” (emphasis added).

Several elements can be inferred from paragraph 1 of Article 15 of the GDPR. The paragraph expressly refers to “the personal data concerning them” (4.2.1), which “are being processed” (4.2.2) by

the data controller:

4.2.1. "personal data concerning them"

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104. The right of access may be exercised exclusively with respect to the personal data relating to the data subject who requests access or, where applicable, by an authorized person or an authorized representative (see section 3.4). There are also situations where the data does not have a link to the person exercising the right of access, but rather to another person. However, the data subject only has the right to personal data relating to themselves, excluding data that concerns exclusively another person.

105. However, the qualification of data as personal data relating to the data subject does not depend on the fact that such personal data also refers to another person. Therefore, it is possible for personal data to refer to more than one person at the same time. This does not automatically mean that access must be granted to personal data also related to another person, as the data controller must comply with the provisions of Article 15, paragraph 4, of the GDPR.

106. Data controllers should not interpret the expression "personal data concerning him or her" in an "excessively restrictive" manner, as already indicated by the Article 29 Working Party in relation to the right to data portability. Applied to the right of access, the EDPB considers, for example, that recordings of telephone conversations (and their transcription) between the data subject requesting access and the data controller may fall within the right of access as long as the latter are personal data. (...) As previously mentioned, the CJEU ruling of May 4, 2023, states that "(...) the right of access must be interpreted in the sense that the right to obtain from the data controller a copy of the personal data being processed implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the need to take into account, in this regard, the rights and freedoms of third parties."

In conclusion, in the present case, the claiming party has the right to be provided with access to their personal data in relation to the request made to the responding party, specifically concerning their personal data and the invoices recorded in the system of the responding party, especially those corresponding to the fourth quarter of 2023; without any documentary evidence indicating that the responding party has provided, or reasonably denied, such data to the claiming party. Obviously, it cannot be accepted that the request for access to personal data can be dismissed simply by stating to the data subject, "We do not have any information belonging to you," when there is evidence of a business relationship that involves the processing of personal data; nor that the attention to such a request is conditioned on the fulfillment of other payment obligations that may correspond to the claiming party, the substantiation of which must be promoted through the appropriate channels.

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Therefore, it is appropriate to uphold the claim that initiated this procedure.

This Agency is not competent to analyze and assess the compliance or non-compliance with the contractual conditions between the parties, and must refer to the appropriate instances for evaluation. In view of the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the

GDPR have been infringed and to urge ASESORÍA Y CONSULTORÍA PARA EMPRESAS YOU, S.L. with NIF B09893983, to send to the claiming party, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to ASESORÍA Y CONSULTORÍA PARA EMPRESAS YOU, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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